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Union of India - Act

The Rules For Inspecting, Surveying And Regulating Cargo Boats Which Are Not Self Propelling, Plying Within The Limits Of The Port Of Bombay, 1955

UNION OF INDIA

India

The Rules For Inspecting, Surveying And Regulating Cargo Boats Which Are Not Self Propelling, Plying Within The Limits Of The Port Of Bombay, 1955

Rule

THE-RULES-FOR-INSPECTING-SURVEYING-AND-REGULATING-CARGO-BOATS-WHICH-ARE-NOT-SELF-PROPELLING-PLYING-WITHIN-THE-LIMITS-OF-THE-PORT-OF-BOMBAY-1955 of 1955

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The Rules For Inspecting, Surveying And Regulating Cargo Boats Which Are Not Self Propelling, Plying Within The Limits Of The Port Of Bombay, 1955

Published vide Notification Gazette of India, 1955 Part 2, Section 3, page 243.

1699.

S.R.O. 273, dated 18th January, 1955. - In exercise of the powers conferred by Cl. (eee) and (k) of sub-section (1) of Sec. 6 of the Indian Ports Act, 1908 (

15 of 1908

) and in supersession of the rules published with the notification of the Government of Bombay, Marine Department No. 150, dated the 18th December, 1902, the Central Government hereby makes the following rules for inspecting, surveying and regulating cargo boats which are not self propelling, plying within the limits of the Port of Bombay, the same having been previously published as required by sub-section (2) of said section, namely:

1.

No cargo-boat which is not self propelling shall ply, within the limit of the Port of Bombay, whether ordinarily or casually for

(a)

the landing and shipping of merchandise, or

(b)

carrying bonafide mazdoors to and fro for cargo work on board vessels, without an Inspection Certificate for the time being in force under these rules or other similar rules made under Cl. (k) of sub-section (1) of Sec. 6 of the Indian Ports Act, 1908 (

15 of 1908

) and in force at any other Port in India.

2.

All correspondence relating to inspection of cargo-boats should be addressed as follows:

The Mechanical Superintendent,

(Inspection of cargo barges)

Bombay Port Trust, [Mazagon, Bombay-101.

3.

Every application for an Inspection Certificate under these rules shall be made in the prescribed form S.1 annexed to these rules accompanied by the inspection fee chargeable, namely :

Rs.

Class

I.-

Padows,

Muchwas and other similar sailing vessels, which ordinarily proceed under own sail-

Not

exceeding 50 tons gross.

20

For

every additional 50 tons or fraction of 50 tons.

10

Class

II.-

Wood

and Composite Lighters-

Not

exceeding 50 tons gross.

30

For

every additional 50 tons or fraction of 50 tons

20

Class

III.-

Iron
and Steel Lighters-
Not
exceeding 50 tons gross
50

For
every additional 50 tons or fraction of 50 tons
20

In addition to the fees mentioned above an extra fee of Rs. 80 shall be payable in respect of the inspection of a lighter (barge) intended for the transport of liquid fuel. Overtime fees specified in Rules 32 and 33 shall be payable as provided by the said rules.

Official receipt in form S. 3 will be issued for all payments received by the Mechanical Superintendent, Bombay Port Trust (hereinafter referred to as "the Mechanical Superintendent").

4.

(1)

Every Inspection Certificate granted under these rules shall continue in force for one year, from the date of the completion of the inspection of the cargo-boat in dry dock or on the hard, unless it shall have been revoked earlier under the provisions of these rules.

(2)

An Inspection Certificate may be extended on application in writing made in this behalf which shall be accompanied by one-fourth of the fee referred to in rule 3 for a period not exceeding one month if the condition of the vessel's hull and equipment is found to be in order.

(3)

If the original certificate is lost during the period of its currency a duplicate copy thereof shall be granted to the holder of the original certificate on payment of a fee of rupee one, and such duplicate shall thereupon be valid as an Inspection Certificate under these rules for the remainder of such period.

5.

No Inspection Certificate shall be granted in respect of any cargo boat until such boat has been inspected by the Inspectors at the Port of Bombay appointed by Chairman and Trustees of the Port of Bombay.

6.

The Inspectors so appointed shall

(a)

inspect the vessel as to her sea-worthiness,

(b)

inspect her equipment, regulation lights, and screens,

(c)

determine the approximate dead weight quantity of cargo and the number of mazdoors to be carried,

(d)

mark the disc for the fair and foul seasons on all cargo-boats,

(e)

in the case of lighters (barges) intended for the transport of liquid fuel, duly verify that they comply with the specification laid down in the Appendix to rule 52A of the rules published in the Government of Bombay Notification Marine Department No. 441/42, dated 19th January, 1925 and make an endorsement to that effect on the Inspection Certificate, and

(f)

determine the number of crew required.

7.

If an Inspector finds that any defect exists in the hull or equipment of a vessel, he shall, before refusing to grant an Inspector Certificate regarding such vessel, address a letter to the owner of the vessel pointing out such defect and also pointing out the repairs or other action which is necessary for remedying the defect.

8.

If the Inspector is subsequently informed by the owner that the requisite repairs, have been executed or other action has been taken, he shall, with the approval of the Mechanical Superintendent pay one or more extra visits to the cargo-boat and thereafter either give or refuse a certificate of inspection as he shall think proper.

9.

Having determined the approximate dead weight quantity of cargo and the number of mazdoors to be carried by a boat, as also the free board for the fair and foul seasons, the Inspector shall indicate the position where the load line discs are to be carried on both sides of the vessel. The discs shall be as hereinafter mentioned and shown in the attached diagram and should be carved or centre punched on the sides of iron and steel vessels and should be cut into the planking for at least $1/8$ of an inch deep into the sides of wooden vessels. The upper edge of the line passing through the centre of the discs will mark the maximum depth to which the vessel can be loaded in fair weather and the upper edge of the lower line will mark the maximum depth to which the vessel can be loaded in foul weather.

(a)

the circular disc shall be 12" in diameter with a horizontal line 18" in length and drawn through its centre-all lines to be 1" in thickness. The disc shall be marked amidships on each side of the vessel. The upper edge of the horizontal line passing through the centre of the disc, marked 'F' and called the fair season load line, shall always indicate the maximum depth to which the vessel may be loaded during fair season and the upper edge of the next horizontal line below, marked 'F' and called the foul seasons load line, shall always indicate the maximum depth to which the vessel may be loaded during foul season. Fore end of vessel

(b)

the said disc and the said maximum load line in connection therewith shall be painted white or yellow on a dark ground, or black on a light ground, and the position of the disc and of each of the lines shall in the case of iron and steel vessels be permanently marked by centre punch marks, and shall in the case of wooden vessels be sunk for their breadths into the planking, a depth of not less than $1/4$ th of an inch.

10.

Before an Inspection Certificate is granted, the cargo-boat shall have the registered number a foot long, carved and painted on each of the quarters in white on a black ground or black on a white ground.

11.

The owner or his Agent or the tindal or boatman-in-charge of any licensed cargo-boat shall not permit any quantity of cargo or any number of mazdoors, to be carried in such boat at any time in excess of the quantity or number permissible under these rules and he shall not permit such boat to ply unless provided with the number of crew stated in the certificate.

12.

The certificate granted for any cargo-boat may be revoked whenever such boat is, in the opinion of the Mechanical Superintendent or the Inspector, unfit for the conveyance of cargo or mazdoors or when any breach of the conditions of the inspection Certificate or Port Rules has been committed by the owner or his Agent or the tindal or boatman-in-charge of the boat.

13.

Every licensed cargo-boat when plying shall have her Inspection Certificate on board and such certificate shall be produced when required.

14.

Every licensed cargo-boat when plying shall have on board, firmly attached to the structure of her hull by a coir line not less than fifteen fathoms in length a life-buoy or other suitable buoy so placed that in case the cargo-boat should sink the buoy will float clear and mark the position.

15.

Every cargo-boat shall carry at least two life-buoys with the Registration Number of the cargo-boat and the name of the Port of Registration painted on them.

16.

In case of any accident occasioning any material damage affecting the sea worthiness or efficiency of the vessel, a report to that effect shall be made to the Mechanical Superintendent, or the Inspector in writing as soon as possible for the purpose of re-inspecting the vessel.

17.

The Inspection Certificate shall be in form S. 2 appended to these rules and be renewable annually on expiration.

18.

For the purposes of these rules, the following periods will indicate the fair and foul seasons respectively.

1st.

December to 20th May (inclusive) and 16th September to 15th October (inclusive)-Fair Season.

21st.

May to 15th September (inclusive) and 16th October to 30th November (inclusive)-Foul Season.

19.

The dead weight carrying capacity of cargo-boats shall be measured as follows:-

$L \times B \times D$

----- x factor

35.

L-Length; B-Breadth; D-difference between vessel's light mark and freeboard marks, all in feet; factor as defined in rule

20.

20.

The factor for barges shall be .8 and for other vessels .7 or such other factor as the Inspector may decide.

21.

The following multipliers when applied to a boat's moulded depth will give the freeboard :

Padows or Prows, 3.5" of side for each foot of moulded depth.

Wooden Barges, 2.5" of side for each foot of moulded depth.

Batelas, 3" of side for each foot of moulded depth.

Iron Barges. 3" of side for each foot of moulded depth.

Pattimars or Ballaors, 3" of side for each foot of moulded depth.

Mahageries or Mutchwas, 4" of side for each foot of moulded depth.

Nothing herein contained shall limit the discretion of the Inspector to apply such multiplier as he may think necessary.

22.

All craft with the exception of Mahageries must present 3" more of clear side during the foul season than that allowed by the centre line of disc for the fair season.

In the case of Mahageries 2" more free board will be necessary.

23.

The space allowance when carrying mazdoors for working cargo shall be as follows:

In cargo-boats or barges up to and inclusive of 15 tons Register, 4 square feet per man.

In cargo-boats or barges above 15 and up to 30 tons Register inclusive, 3.5 square feet per man.

In all cargo-boats above 30 tons, 3 square feet per man.

In the matter of decked cargo-boats or barges, only the deck shall be measured for mazdoors.

24.

The Inspector shall, in special cases, have discretionary power in actually fixing the position of the load line disc provided that the freeboard allowed shall not be less than that arrived at by rules and that the owner shall have the right of appeal to the Principal Officer, Government of India, Mercantile Marine Department.

25.

Barges built under the supervision of the Government Surveyor and with scantlings in accordance with Lloyd's or other recognised rules for ships may, should the owner so desire it, have their freeboard determined as though these vessels were sea-going vessels.

26.

Every application for inspection shall be made between the hours of 10-30 A.M. and 5-00 PM. on week days and 10-30 A.M. to 1-00 P.M. on Saturday (Holidays excepted) in the form S.1 annexed to these rules; and must be lodged at the Mechanical Superintendent's Office together with the fees payable under rule 3 or rule 4 above at least three clear days before the day on which it is desired that the inspection shall take place :

Provided that the Mechanical Superintendent may, in any particular case, admit an application at his office less than three clear days before the day on which it is desired that the inspection shall take place.

27.

Upon receipt of an application the Mechanical Superintendent shall fix a place, date and hour at which the inspection shall be commenced, and shall inform the applicant of such place, date and hour.

28.

With a view to obviating inconvenience and delay, owners whose boats are in dock or undergoing repairs, should communicate with the Mechanical Superintendent, if their boats are required to be inspected.

29.

If the boat's hull or equipment are certified for a period of less than one year from the date of inspection, one twelfth of the annual amount shall be chargeable for each month or portions of a month comprised in the said period, provided that

(a)

the minimum fee shall be one-fourth of the annual fee;

(b)

the full annual fee shall be payable, whatever be the nature of the certificate

(i)

in the case of a new cargo-boat under inspection for the first time, or

(ii)

if in accordance with the application a boat has been fully inspected, but the owners or Agents are for any reason unwilling to or unable to execute the repairs recommended by the Inspector.

30.

The fee payable under rule 3 or rule 4 shall be deemed to cover any number of visits, the Inspector may require to make before granting the certificate.

31.

If further inspection is necessary while a certificate of inspection is in force, a fee equivalent to half the normal fee shall be payable for every visit that the Inspector makes.

32.

In addition to the fees chargeable under rule 3 or rule 4 there shall be payable at the time of application to the Mechanical Superintendent a further fee of Rs. 25 in respect of every inspection to be made at any time on any Sunday or Works Holiday.

33.

In addition to the fees chargeable under rule 3 or rule 4 overtime fees in respect of inspections wholly or partially carried out between the hours of 5-00 P.M. and 8-00 A.M. on week days and after 1-00 P.M. on Saturdays shall be payable as follows :

(a)

When the Mechanical Superintendent has admitted an application for inspection on less than three clear days' notice and an Inspector is called upon to undertake the inspection of a boat after 5-00 P.M. on week days and 1-00 P.M. on Saturdays and before 8-00 A.M., an additional fee of Rs. 25 shall be payable.

(b)

If three clear days' notice has been given but the Inspector has not been able to complete the inspection between the hours of 8-00 A.M. and 5-00 P.M. on week days and before 1-00 P.M. on Saturdays, no additional fee will be chargeable.

(c)

Where an Inspector is detained at the request of the owner or Agent after 5-00 P.M. on week days and 1-00 P.M. on Saturdays to complete an inspection undertaken between the hours of 8-00 A.M. and 5-00 P.M. on week days and 8-00 A.M. and 1-00 P.M. on Saturdays, an additional fee of Rs. 15 if the Inspector is released from duty before 6-00 P.M. and 2-00 P.M. respectively, and of Rs. 25 if he is detained later than 6-00 P.M. and 2-00 P.M. respectively, shall be payable.

(d)

Where an Inspector has been called under Cl. (a) or detained under Cl. (c), the boat owner or Agent shall give information of the fact in writing to the Mechanical Superintendent stating the hours during which the Inspector was in attendance.

34.

Applications for Inspection will be entertained only in respect of cargo-boats which have previously been duly registered

with the Mercantile Marine Department of the Government of India.

Form S. 1

To

The Mechanical Superintendent (Inspection of cargo barges).

Bombay Port Trust, Mazagon, Bombay-10

Application

for the Inspection of a Cargo-boat

Name

and address of the owner :

Name

of vessel :

Description

of vessel:

Port

of Registry:

Branded

and printed No :

When

and where built :

Tonnage:

Materials

:

Dimensions

:

L.

B.

D.

Nature

of inspection :

Date

and time of proposed visit of Inspector :

Place

where vessel will be lying :

I hereby apply to you to make the necessary arrangements for the inspection of the above named at the time and place stated.

The necessary fee of Rsis sent herewith.

Dated thisday of.....19 .

Owner or Tindal

N.B. - Three clear days' notice should be given in all cases.

Form S. 2

Certificate of Inspection

Issued under the Rules framed under Sec. 6 (1) (k) of the Indian Ports Act, 1908

The Mechanical Superintendent,

Bombay Port Trust, Mazagon, Bombay-10.

This is to certify that the undermentioned vessel has been examined as to her seaworthiness, etc., as required by the rules published in Government Notification, Department No dated.....and found to be fit to ply as a Cargo boat for the landing and shipping of Merchandise and for carrying bona fide Mazdoors within the limits of the Port of Bombay for the period of one year ending19.

Name

of vessel :

Registered

No :
Name
of Tindal :
Tonnage
:
Name
and address of owner :
Crew
to consist of
Tindal
and
Lascars
Approximate
quantity of dead weight
Tons
No.
of mazdoors at
square
feet per man (?.....)
Freeboard
Inspector.
Fair
weather.
Foul
weather.
Mechanical
Superintendent, Bombay Port Trust.

Extract Rules 12 And 16 Of The Rules For Inspecting, Surveying And Regulating Cargo Boats

12. The certificate granted for any cargo-boat may be revoked whenever such boat is, in the opinion of the Mechanical Superintendent or the Inspector, unfit for the conveyance of cargo or mazdoors, or when any breach of the conditions of the Inspection Certificate or Port Rules has been committed by the owner or his Agent or the Tindal or boatman-in-charge of the boat.

16. In case of any accident occasioning any material damage affecting the seaworthiness or efficiency of the vessel, a report to the effect shall be made to the Mechanical Superintendent or the Inspector in writing as soon as possible for the purpose of re-inspecting the vessel.

Note. - Any person convicted of having committed a breach of any of the rules published in the Government Notification cited above is liable to a penalty not exceeding rupees one hundred under section 54 of the Indian Ports Act, 1908 (15 of 1908).

Form S. 3

No.
Mechanical Superintendent's Office,
Bombay Port Trust, Mazagon, Bombay-10
Received (by cheque/cash) from the owner of cargo-boat
the sum of Rs(), being the fee for the Inspection
of the vessel for a Certificate of Inspection.
Inspection Clerk. Mechanical Superintendent,
Bombay Port Trust.

N.B. - No money will be received after 5-00 P.M. on week days and 1-00 P.M. on Saturdays.
Cheque should be crossed and made payable to the Chief Accountant, Bombay Port Trust.

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Translation